

STUDIO 18

MEMBERSHIP AGREEMENT & WAIVER OF LIABILITY

15430 Highway 99, Eagleville, TN 37060 • 629-899-2611

This Membership Agreement and Waiver of Liability ("Agreement") is entered into between Studio 18, operated by Gem City LLC ("Studio 18"), located at 15430 Highway 99, Eagleville, TN 37060, and the individual identified below ("Member"), as of the Membership Start Date.

Member Name: _____	Membership Start Date: _____
Phone: _____	Email: _____
Emergency Contact Name & Phone: _____	

Part A — Membership Terms

- Membership Purchase.** This membership was purchased through Soldiers for Faith, a nonprofit organization partnering with Studio 18. Notwithstanding how payment was arranged, Member's access to Studio 18's facility, equipment, and services — and Member's rights and obligations regarding that access — are governed entirely by this Agreement between Member and Studio 18 (Gem City LLC). [The commercial relationship between Studio 18 and Soldiers for Faith is documented separately and does not alter the terms of this Agreement.]
- Membership Plan & Fee.** Membership is \$175 per person, per month, and includes: (a) 15 hours of TrackMan golf simulator time per month, with access to Studio 18's course library (600+ courses and growing); (b) 24-hour facility access; (c) up to 3 guests per visit; (d) member pricing on cigar purchases when staff is on site; and (e) a discount off standard rates for studio time and event space rentals (birthday parties, business meetings, watch parties, fantasy football drafts, and similar private gatherings), subject to availability.
- Future Programming.** Studio 18 plans to introduce tournament and league play (with prizes for 1st place at select events) and additional members-only events (e.g., watch parties). These are anticipated member benefits, not guaranteed under this Agreement, and will be announced with their own details and any applicable rules once launched.
- Term & Billing.** Membership is month-to-month and automatically renews each month unless cancelled per Section 8. Dues are billed monthly in advance to the payment method on file. Member authorizes Studio 18 (or its designated payment processor) to charge this amount each billing cycle until the membership is cancelled.
- Simulator Hours.** The monthly allotment of 15 hours resets on the 1st of each month and does not roll over from the prior month. Simulator time used by a Member's guests counts against the Member's monthly allotment unless otherwise agreed in writing. If Member exceeds their monthly allotment, additional hours may be purchased at a discounted member rate of \$40/hour, billed directly through TrackMan.
- Guests.** Member may bring up to 3 guests per visit. Guests must be accompanied by the Member at all times while on the premises and must sign Studio 18's Guest Waiver (a separate one-page form) before using any equipment or entering the simulator bay. Member is responsible for their guests' conduct and any charges or damages guests cause.
- Cigars, Tobacco & Alcohol.** Cigars are available at member pricing only when staff is on site. Cigar purchases are restricted to persons 21 and older, consistent with Tennessee law. Smoking of any kind, including cigars, is permitted only in the outdoor patio area — there is no smoking inside the building under any circumstances. Studio 18 does not sell alcohol on the premises. Bringing outside alcohol ("BYOB") is not a standing membership privilege — it is available only for certain scheduled private events, by prior arrangement with staff and at a custom quote. No alcohol or cigar sales or consumption are permitted during unstaffed / after-hours access periods.

8. **Minors.** Minors are welcome on the premises when accompanied by a parent or guardian. A parent or guardian must remain with any minor in areas where cigars or alcohol are present. Minors may not purchase or consume cigars or alcohol under any circumstances.
9. **Facility Access.** Studio 18 will provide Member with the means of 24-hour access to the facility (access code, fob, or other credential as designated by Studio 18). Member must safeguard their access credential and may not share it with any non-member. A lost or unreturned credential may result in a replacement fee. Access credentials remain the property of Studio 18 and must be returned or deactivated upon cancellation.
10. **Event Space & Studio Discounts.** Member's discount on studio time and event space rentals applies to Member's own private bookings, does not stack with other promotions, and is subject to availability and Studio 18's standard booking, deposit, and cancellation policies.
11. **Cancellation.** Member may cancel this membership at any time with 30 days' written notice to Studio 18. Monthly dues are non-refundable once a billing cycle has begun. There is no long-term commitment beyond month-to-month unless Member signs a separate term agreement.
12. **Membership Freeze.** Member may request to freeze their membership (e.g., for travel or medical reasons) by written request to Studio 18; freeze terms and any limits on frequency or duration are at Studio 18's discretion and will be confirmed in writing.
13. **Conduct & Termination.** Studio 18 may suspend or terminate this membership, without refund of current dues, for violation of the House Rules, non-payment, or conduct that endangers staff, other members, or guests.
14. **Rate Changes.** Studio 18 may adjust membership pricing or included benefits with at least 30 days' written notice before the change takes effect for existing members.

Part B — Release of Liability, Assumption of Risk & Media Consent

Please read carefully. This section affects your legal rights.

1. **Assumption of Risk.** Use of the golf simulator, hitting bay, lounge, event space, cigar area, and (beginning October 2026) the outdoor patio and smoke lounge involves inherent risks, including but not limited to being struck by a club or ball, slips, falls, equipment malfunction, and effects of tobacco or alcohol use. Member voluntarily assumes all such risks for themselves and for any guests they bring, to the fullest extent permitted by law.
2. **Release & Waiver.** In consideration of being permitted to use Studio 18's facility and equipment, Member, on behalf of themselves and their guests, releases and holds harmless Studio 18, Gem City LLC, its owners, employees, and Soldiers for Faith from any and all claims, liabilities, or damages arising from injury, loss, or property damage related to use of the premises, except to the extent caused by Studio 18's gross negligence or willful misconduct.
3. **Guest Responsibility & Indemnification.** Member is responsible for ensuring each guest signs Studio 18's Guest Waiver and follows the House Rules before using the facility. Member agrees to indemnify Studio 18 for any claims, costs, or damages arising from the conduct of their guests.
4. **Property & Equipment Damage.** Member is financially responsible for damage to simulator equipment, screens, furnishings, or the facility caused by Member or their guests beyond normal wear and use.
5. **Media Consent.** Member grants Studio 18 permission to photograph and record Member's likeness while on the premises and to use such images or footage for promotional, marketing, and archival purposes (including social media and the Studio 18 website). Member may opt out of this consent at any time by written notice to Studio 18, effective for future use.
6. **Insurance.** Studio 18 carries general liability insurance for the facility. This coverage does not extend to Member's or guests' personal property, vehicles, or personal injury beyond what is required by law.

7. Governing Law. This Agreement is governed by the laws of the State of Tennessee. If any provision is found unenforceable, the remaining provisions remain in full effect.

Acceptance & Signatures

Member Signature

Date

Printed Name

Parent/Guardian Signature (required if Member is under 18)

Date

Studio 18 Representative

Date